

Senate File 2263

H-8290

1 Amend Senate File 2263, as amended, passed, and reprinted by
2 the Senate, as follows:

3 1. Page 2, after line 18 by inserting:

4 <DIVISION ____

5 SEIZURE OF FIREARMS

6 Sec. _____. NEW SECTION. 724.33 **Anti-red flag gun seizure.**

7 1. This section may be cited and referred to as the
8 *"Anti-Red Flag Gun Seizure Act"*.

9 2. For purposes of this section:

10 a. *"Law-abiding citizen"* means a person that is not
11 otherwise precluded under state law from possessing a firearm.

12 b. *"Red flag law"* means any of the following:

13 (1) A firearm control law, order, or measure that directs
14 the temporary or permanent seizure of any firearm, firearm
15 accessory, or ammunition of an individual.

16 (2) A federal statute, federal rule, federal executive
17 order, or federal judicial order or finding, or any state
18 statute, state rule, state executive order, or state judicial
19 order or finding, that does any of the following:

20 (a) Prohibits a resident from owning, possessing,
21 transporting, transferring, or receiving any firearm, firearm
22 accessory, or ammunition without the conviction of a violent
23 felony crime or other disqualification under section 724.8B.

24 (b) Orders the removal or requires the surrender of any
25 firearm, firearm accessory, or ammunition from a resident
26 except persons lawfully in custody or persons who have been
27 released after the execution of a bail bond after having been
28 charged with a violent felony as described in section 724.8B.

29 3. Any federal order of protection, other judicial order
30 issued by a federal court, or federal executive order that is
31 a red flag law or otherwise directs the confiscation of any
32 firearm, firearm accessory, or ammunition from any law-abiding
33 citizen within the borders of this state shall not be enforced
34 in this state by any state agency, political subdivision, or
35 state or local law enforcement agency.

1 4. No state agency, political subdivision, or state or local
2 law enforcement agency shall receive any federal moneys for
3 the purpose of enforcing any federal statute, federal rule,
4 federal executive order, or federal judicial order or findings,
5 or for the purpose of enforcing any state statute, state rule,
6 state executive order, or state judicial order or findings,
7 that would have the effect of enforcing a red flag law against
8 a resident.

9 5. No state entity or employee thereof, political
10 subdivision or employee thereof, or other person shall have
11 the authority to enforce or attempt to enforce a red flag law
12 regardless of the red flag law's origin or the authority of the
13 issuing entity. This subsection shall not apply to any agent
14 of the federal government enforcing a federal law or federal
15 order.

16 6. Nothing in this section shall be construed to prevent a
17 firearm, firearm accessory, or ammunition from being seized as
18 evidence by law enforcement in the course of an investigation.

19 7. *a.* A political subdivision or state or local law
20 enforcement agency that employs a law enforcement officer who
21 knowingly acts to violate this section and enforce a red flag
22 law under any state or federal statute, rule, executive order,
23 or judicial order or finding shall be liable to the party
24 against whom the red flag law was enforced in an action at law,
25 suit in equity, or other proper proceeding for redress and
26 shall be subject to a civil penalty of fifty thousand dollars
27 per occurrence.

28 *b.* Any person injured under this section shall have standing
29 to pursue an action for injunctive relief in the district court
30 of the county in which the action allegedly occurred or in the
31 district court of Polk county.

32 *c.* The court shall hold a hearing on any motion for a
33 temporary restraining order or preliminary injunction within
34 thirty days of service of the petition.

35 *d.* In an action brought under this section by a party

1 against whom the red flag law was enforced, a court may order
2 injunctive or other equitable relief, recovery of damages,
3 other legal remedies, and payment of reasonable attorney fees,
4 costs, and expenses of the party. The relief and remedies set
5 forth in this section shall not be deemed exclusive and shall
6 be in addition to any other relief or remedies permitted by
7 law. The court may award the prevailing party, if not the
8 state or a political subdivision thereof, reasonable attorney
9 fees and costs.

10 e. Sovereign immunity shall not be an affirmative defense to
11 any action brought under this section.

12 Sec. _____. EFFECTIVE DATE. This division of this Act, being
13 deemed of immediate importance, takes effect upon enactment.>

14 2. Title page, lines 1 and 2, by striking <and possession
15 of weapons> and inserting <possession, and seizure of weapons,
16 providing penalties>

17 3. By renumbering as necessary.

HOLT of Crawford